

GOVERNMENT OF INDIA STATUTORY REGULATORY REPOSITORY

AYURLEX COMPLIANCE HANDBOOK — BIOLOGICAL DIVERSITY ACT,
2002 / 2023 & NBA CLEARANCE

7. Biological Diversity Act, 2002 / 2023 & NBA Clearance

Domain Identifier: abs | Statutory Authority: National Biodiversity Authority (NBA, Chennai) & State Biodiversity Boards (SBB)

Legislative Base: The Biological Diversity Act, 2002 (Act No. 18 of 2003) as amended by the Biological Diversity (Amendment) Act, 2023.

Core Provisions & IPR Compliance Mandates:

- **Section 6 — Mandatory Prior NBA Approval Before Patent Grant:** No person shall apply for any intellectual property right in or outside India for any invention based on Indian biological resources without obtaining prior approval of the NBA.
- **NBA Form III:** The statutory application form filed with NBA, Chennai. Failure to obtain Form III approval leads to statutory revocation of the patent under Section 64(1)(p) of the Patents Act.
- **Section 21 — Access & Benefit Sharing (ABS):** Equitable sharing of commercial benefits. Standard statutory benefit-sharing ranges between **0.1% to 0.5%** of the annual ex-factory sale.
- **Biological Diversity (Amendment) Act, 2023 Key Reforms:**
 - **Decriminalization:** Replaced imprisonment (formerly up to 5 years under Section 55) with civil monetary penalties.
 - **Exemption for Registered AYUSH Practitioners:** Cultivators, registered AYUSH vaidyas, and codified traditional knowledge users are exempted from intimation to SBB under Section 7.

Optimal RAG Queries for this Dataset:

1. 'When is NBA Form III mandatory before patent grant in India?' → Returns Section 6 requirements.
2. 'What are the Access and Benefit Sharing percentages on Ayurvedic herbal exports?' → Returns Section 21 0.1%–0.5% levy.
3. 'How did the 2023 Biodiversity Amendment impact Indian AYUSH manufacturers?' → Returns decriminalization and Section 7 exemptions.